Backgrounder
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Will the new European Commission signal any changes for Belarus and the Eastern Partnership?

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Summary

Despite a bumpy confirmation process, the new European Commission President and commissioners have been approved and the question now is, how much will they be able to achieve? There are many divisive questions within Europe and it will not be possible to enact long reaching change in a fragmented, strained political environment without addressing these challenges directly. The new Commission needs to tackle the key issues facing the EU or it risks redundancy. But with a weak mandate the new Commission might struggle to execute its central aims.

Contents

1 The New Commission: An overview
2 Potential Impact of the new Commission on the Eastern Partnership
3 EU and Belarus relations: is there potential for development?
4 Conclusion

One of these aims is for “a more geopolitical EU”, and a key part of that is the Eastern Partnership Initiative (EaP). The EaP recently reached its 10th birthday and is also facing challenges which require impactful solutions. It is important to understand in what direction the new Commission intends to take the EaP and take stock of what it has achieved so far.

> As one of the six partners of the EaP, Belarus has plenty of room for improvement in its relationship with the EU.

The New Commission: An overview

The European Commission oversees the application of EU law and respect for the Treaties by the Member States; it is essentially an enforcement body. It helps to shape the EU's overall strategy, proposes new EU laws and policies, monitors their implementation, manages the budget, and supports international aid and development. There were 28 commissioners, one from every member state, but now 27 as the UK has declined to nominate a commissioner.

In July 2019, MEPs confirmed Ursula von der Leyen as the new European Commission President, officially replacing Jean-Claude Juncker. Previously, von der Leyen was Germany's Defense Minister and is a close ally of the German Chancellor, Angela Merkel. Von der Leyen made campaign promises that included drastically cutting carbon dioxide emissions and formatting a climate law, and introducing more mechanisms to tackle member states who breach EU law. The new President declared she would bring in more balanced representation in this Commission, both in terms of gender and an east-west balance. Von der Leyen also discussed giving the European Parliament the right to initiate legislation, a move popular with MEPs.

Von der Leyen is seen as a compromise candidate for President, but also one who has the confidence of a diverse range of member states, from France to Hungary, who both claimed her nomination as their success. The confirmation process however was fraught. Von der Leyen was only put forward by EU political leaders as their preferred candidate in a last-minute deal and she was narrowly elected by the European Parliament by just nine votes, the slimmest margin since MEPs got the power to reject a candidate for Commission president in 2008. This fragile mandate suggests that she could struggle to get her policy goals past MEPs.

This potential difficulty was highlighted when it came to confirming commissioners. MEPs emphatically rejected the French candidate, former MEP and Defence Minister, Sylvie Goulard, doubting her independence and integrity due to other employment. The Romanian candidate, Rovana Plumb, and Hungarian appointee, László Trócsányi, were also deemed to have a conflict of interest. This move by the MEPs could potentially raise tensions with the governments in Hungary and Romania, who have previously clashed with Brussels over the rule of law.

A further issue came with the naming of commissioner portfolios. The President was forced to change the name of a portfolio from "protecting our European way of life" to "promoting our European way of life", as the initial name was seen as having far-right connotations.

While member states nominate their candidates for commissioner, it is the President who decides which roles they get. The new Commission leadership team will consist of the President and three executive vice-Presidents, each responsible for von der Leyen's priority areas. The three executive vice-Presidents are Frans Timmermans (the Netherlands), European Green Deal, Margrethe Vestager (Denmark), the Digital Age, and Valdis Dombrovskis (Latvia), for an Economy That Works For People & Financial Services. Josep Borrell (Spain) has been named High Representative of the Union for Foreign Affairs and Security Policy, a key role, but not a Vice Executive President.

In her opening speech as President, von der Leyen spoke of how in the next long-term budget, she wanted Europe "to spend 30% more on external action than we do today," highlighting her desire to increase the EU's international reach. Von der Leyen wants the Commission to be more geopolitical and has entrusted Josep Borrell with the creation of a working group called "A Stronger Europe in the World". The President is also seen as a staunch integrationist, backing closer military co-operation in the EU. Von der Leyen has made clear that the EU needs to be a stronger pillar within NATO in order to ensure the EU maintains a strong voice. However, she does not back the creation of a European army, instead calling for a "Army of Europeans", making the clear distinction that it should be coordinated cooperation under the control of national parliaments.

Potential Impact of the new Commission on the Eastern Partnership

The new Commission President has said that she wishes to invest more on the external aspects of the EU, but what can this mean for the future of the Eastern Partnership (EaP)? The second Hungarian nominee, Oliver Varhelyi, as Commissioner for Neighbourhood and Enlargement Policy, is responsible for the EaP. Varhelyi was confirmed, but during his confirmation hearing MEPs questioned whether his loyalty lays with the EU as a whole or with Prime Minister Orban, who is currently at odds with Brussels over issues of the rule of law.

Initial comments by the new Commission President in a letter to Varhelyi, stressed that "the future of the European Union is closely tied with the future of neighbouring and partner countries." The President urged the commissioner to strengthen relations with the six countries of the EaP and to speed up the fulfillment of the Association Agreements (AAs) and deepen Free Trade (DCFTAs) relations with Ukraine, Georgia and Moldova. Von der Leyen wrote that new packages of long-term political objectives of the EaP must be elaborated by mid-2020, and underlined that the focus had to be on the

supremacy of law, the struggle against corruption, and the independence of media and civic engagement. These requests highlight that the EaP is expected to continue to play a major role in the Eastern neighbourhood during the next Commission's tenure.

When asked how he intends to find a way to reinvigorate dialogue with EaP countries, commissioner Varhelyi said his ideas include the EU trying to "help them create a market economy to withstand outside pressure and create a climate for investment." Varhelyi stressed there is still "work to be done" on DCFTAs, but if EaP countries are ready to engage more, "then we should integrate them in as many policy areas as possible." Regarding Moldova, he said unless reforms in the country resume, the EU's financial assistance to Moldova would be suspended. The commissioner also underlined that the EU's geopolitical goal is to create stability in the region, and that the EU has a "special responsibility" towards Ukraine.

EU and Belarus relations: is there potential for development?

Expectations from the Belarusian side remain high despite a lack of serious tangible progress with the EaP initiative. The Belarusian Minister of Foreign Affairs, Vladimir Makei, recently recalled the Belarusian proposals to focus the EaP on achieving clear and significant results by 2030, including a triple increase in exports from partner countries to the EU and EU investments in these countries, and a twofold increase in the number of jobs created in these countries by the EU.

> However internal developments in Belarus remain a factor in its engagement with the EU.

The EU called the November 2019 parliamentary election a "lost opportunity," urging Minsk to carry out reforms ahead of the Presidential election.

EU-Belarus relations are further impeded by Lithuanian concerns over the Belarusian Astravyets nuclear power plant (NPP), under construction 50 km from Vilnius. Lithuania blocked the signing of the Partnership Priorities agreement between Minsk and Brussels over these concerns. Finland, which held the Presidency of the Council of the EU in the second half of 2019, proposed holding tripartite expert consultations between Lithuania, Belarus and Finland on the safety of the Belarusian NPP, in an attempt to allow for the signing of partnership priorities. While Lithuania declined the proposal, this attempt demonstrates that the EU is generally willing, and trying, to engage with Belarus.

When Belarusian President Alexander Lukashenko recently visited Austria, his first visit to an EU member state in more than three years, he stated desire for closer relations with the EU. And the visit itself reflected a positive dynamic in Belarus-EU relations. However, the emphasis of the visit was also largely on Austria, as an investor in the Belarusian economy, and therefore had more of a bilateral focus.

Overall there have been some benefits for Belarus in the EaP, such as the demarcation of the Belarus-Ukraine border, digitalization projects, and development of pan-European transport corridors. But the issue over the Astravyets NPP continues to be a sticking point for EU-Belarus relations, and many in the EU argue that the potential for Belarus within the EaP will only be greater if it is willing to enact reforms.

Conclusion

The new Commission faces a difficult road ahead as it navigates a divided Europe and a potentially adverse European Parliament. Von der Leyen's slim mandate might result in struggles to make progress with her policy priorities. However, when it comes to the EaP, the new commissioner and the President herself appear committed to progress. The direct request to Varhelyi for new packages of long-term political objectives of the EaP by mid-2020 demonstrate that the President is looking to reinvigorate the initiative.

In terms of Belarus-EU relations, the potential is less clear.

> The Belarusian desire for closer EU relations appears there, on the surface, but there is little desire to implement the reforms the EU requires.

Furthermore, the recent visit to Austria may also highlight that Belarus is aware that progress can be made more quickly through developing bilateral relations with EU member states, rather than with dealing with the EU as a whole.

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